

FUNDAMENTAL RIGHTS

PART III AS AN → ARTICLE 12 AND 13 → EQUALITY CODE AND RESERVATION → ARTICLE 19: SIX FREEDOMS → ARTICLES 20-22: CRIMINAL PROCESS → EXPLOITATION, RELIGION AND MINORITY

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

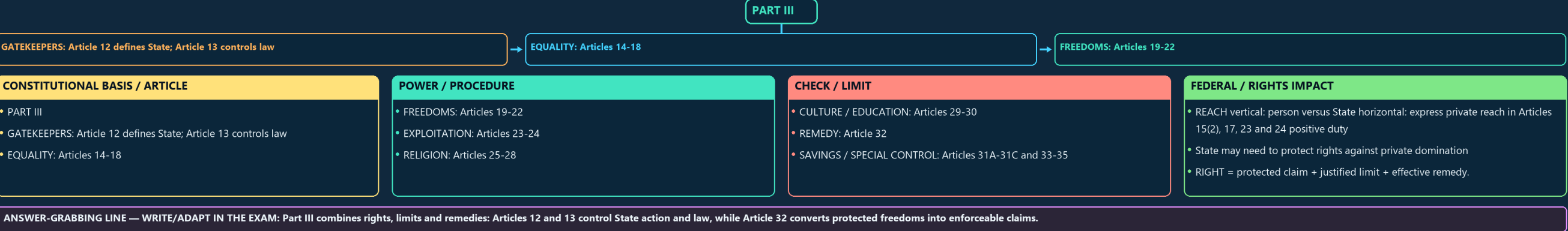
Approval: FALSE • Pending user review • active generation g15 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 PART III AS AN OPERATING ARCHITECTURE, NOT A LIST

PART III AS AN OPERATING ARCHITECTURE, NOT A LIST PART III ARTICLE 12 DEFINES STATE; ARTICLE 13 CONTROLS LAW ARTICLES 14-18 ARTICLES 19-22 ARTICLES 23-24 ARTICLES 25-28 ARTICLES 29-30

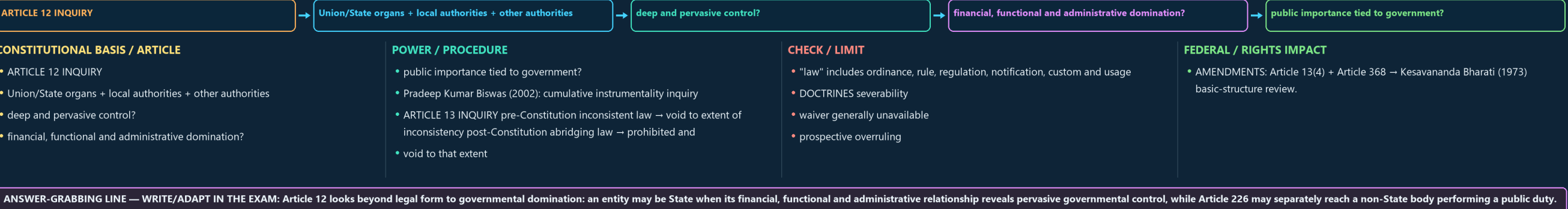


01

STAGE 01 ARTICLE 12 AND 13: WHO IS BOUND AND WHAT BECOMES VOID

ARTICLE 12 AND 13 WHO IS BOUND AND WHAT BECOMES VOID ARTICLE 12 INQUIRY UNION/STATE ORGANS + LOCAL AUTHORITIES + OTHER AUTHORITIES DEEP AND PERVASIVE CONTROL? FINANCIAL, FUNCTIONAL AND ADMINISTRATIVE DOMINATION? PUBLIC IMPORTANCE TIED TO GOVERNMENT?

PRADEEP KUMAR BISWAS (2002)



02

STAGE 02 EQUALITY CODE AND RESERVATION DOCTRINE

EQUALITY CODE AND RESERVATION DOCTRINE ARTICLE 14 EQUALITY BEFORE LAW + EQUAL PROTECTION CLASSIFICATION INTELLIGIBLE DIFFERENTIA + RATIONAL NEXUS ARBITRARINESS IS ANTITHETICAL TO EQUALITY ARTICLES 15-16 NON-DISCRIMINATION + ENABLING SUBSTANTIVE-EQUALITY CLAUSES

FIRST AMENDMENT ARTICLE 15(4) INDRA SAWHNEY (1992)

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus	Champakam Dorairajan (1951) → First Amendment → Article 15(4)	M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls	ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.
E.P. Royappa (1973)/Maneka Gandhi (1978) = arbitrariness is antithetical to equality	Indra Sawhney (1992) → creamy layer, ordinary 50% ceiling, no 16(4) promotion	103rd + Janhit Abhiyan (2022) → EWS upheld by majority	
ARTICLES 15-16 non-discrimination + enabling substantive-equality clauses	77th/81st/82nd/85th → promotion, backlog, qualification and seniority tools	Davinder Singh (2024) → evidence-based SC sub-classification allowed, not mandated	
CONSTITUTIONAL BASIS / ARTICLE - ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus - E.P. Royappa (1973)/Maneka Gandhi (1978) = arbitrariness is antithetical to equality - ARTICLES 15-16 non-discrimination + enabling substantive-equality clauses	POWER / PROCEDURE - Champakam Dorairajan (1951) → First Amendment → Article 15(4) - Indra Sawhney (1992) → creamy layer, ordinary 50% ceiling, no 16(4) promotion 77th/81st/82nd/85th → promotion, backlog, qualification and seniority tools	CHECK / LIMIT M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls 103rd + Janhit Abhiyan (2022) → EWS upheld by majority - Davinder Singh (2024) → evidence-based SC sub-classification allowed, not mandated	FEDERAL / RIGHTS IMPACT ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

03

FIRST AMENDMENTARTICLE 15(4)INDRA SAWHNEY (1992)

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CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 14 equality before law + equal protection classification = intelligible differentia + rational nexus
- E.P. Royappa (1973)/Maneka Gandhi (1978) = arbitrariness is antithetical to equality
- ARTICLES 15-16 non-discrimination + enabling substantive-equality clauses

POWER / PROCEDURE

- Champakam Dorairajan (1951) → First Amendment → Article 15(4)
- Indra Sawhney (1992) → creamy layer, ordinary 50% ceiling, no 16(4) promotion
- 77th/81st/82nd/85th → promotion, backlog, qualification and seniority tools

CHECK / LIMIT

- M. Nagaraj (2006)/Jarnail Singh (2018) → inadequacy data and Article 335 efficiency controls
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FEDERAL / RIGHTS IMPACT

- ARTICLES 17-18 abolish untouchability and reject titles with narrow exceptions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 14 combines reasonable-classification review with anti-arbitrariness, so formal differentiation cannot shield irrational, capricious or disproportionate State action.

04

STAGE 03ARTICLE 19: SIX FREEDOMS AND RESTRICTION-GROUND DISCIPLINE

ARTICLE 19SIX FREEDOMS AND RESTRICTION-GROUND DISCIPLINEARTICLE 19(1), CITIZENS ONLY SPEECHPROFESSION VALID LAW + LISTED GROUND + REASONABLENESS +SPEECH GROUNDS UNDER 19(2) SOVEREIGNTY/INTEGRITYSTATE SECURITYFRIENDLY RELATIONSPUBLIC ORDER DECENCY/MORALITY

ARTICLE 19(1), CITIZENS ONLY speech

profession valid law + listed ground + reasonableness + proportionality→SPEECH GROUNDS UNDER 19(2) sovereignty/integrity→State security

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- ARTICLE 19(1), CITIZENS ONLY speech - profession valid law + listed ground + reasonableness + proportionality - SPEECH GROUNDS UNDER 19(2) sovereignty/integrity	- State security - friendly relations - public order decency/morality	- ANCHORS press and right to know derive from 19(1)(a) - Shreya Singhal (2015): 66A void; advocacy differs from incitement - Anuradha Bhasin (2020): shutdown orders require publication and proportionality	- Kedar Nath Singh (1962): sedition read toward incitement - BNS section 152 requires exact analysis, not a claim that sedition was merely renamed.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

05

STAGE 04ARTICLES 20-22: CRIMINAL PROCESS, DIGNITY AND DETENTION

ARTICLES 20-22CRIMINAL PROCESS, DIGNITY AND DETENTIONARTICLE 20ALL PERSONS NO RETROSPECTIVE CRIMINAL OFFENCE OR ENHANCED PENALTYARTICLE 21A.K. GOPALAN (1950) COMPARTMENTALISATIONR.C. COOPER (1970) LINKAGEJUST, FAIR AND REASONABLE PROCEDURE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same	A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage	K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards	44th Amendment's proposed two-month substitution has not commenced.
offence no compelled testimonial self-incrimination by an accused	Maneka Gandhi (1978): just, fair and reasonable procedure	ARTICLE 22 ordinary arrest: grounds + lawyer + magistrate within 24 hours preventive detention: distinct safeguards	
ARTICLE 21	dignity family: privacy, livelihood, legal aid and speedy trial	no-board period remains three months	

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 20: ALL PERSONS no retrospective criminal offence or enhanced penalty no prosecution and punishment twice for same
- offence no compelled testimonial self-incrimination by an accused
- ARTICLE 21

POWER / PROCEDURE

- A.K. Gopalan (1950) compartmentalisation → R.C. Cooper (1970) linkage
- Maneka Gandhi (1978): just, fair and reasonable procedure
- dignity family: privacy, livelihood, legal aid and speedy trial

CHECK / LIMIT

- K.S. Puttaswamy (2017) test: legality + legitimate aim + proportionality + safeguards
- ARTICLE 22 ordinary arrest: grounds + lawyer + magistrate within 24 hours preventive detention: distinct safeguards
- no-board period remains three months

FEDERAL / RIGHTS IMPACT

- 44th Amendment's proposed two-month substitution has not commenced.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 20 restrains criminal power through protections against retrospective penal liability, double jeopardy and compelled testimonial self-incrimination, each operating within its defined scope.

STAGE 05EXPLOITATION, RELIGION AND MINORITY AUTONOMY

EXPLOITATION, RELIGION AND MINORITY AUTONOMYARTICLES 23-24 TRAFFICKING AND FORCED LABOUR PROHIBITED; MINIMUM-WAGE COERCIONARTICLES 25-28 INDIVIDUAL CONSCIENCE AND PROFESSION, PRACTICE AND PROPAGATIONARTICLE 26 DENOMINATION MANAGEMENT LIMITSPUBLIC ORDER, MORALITY, HEALTH AND OTHER FRSSSTATE MAY REGULATE SECULAR ACTIVITY AND ENACT SOCIAL REFORMARTICLES 29-30ANY SECTION OF CITIZENS WITH DISTINCT LANGUAGE, SCRIPT OR

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLES 23-24 trafficking and forced labour prohibited	Article 26 denomination management limits: public order, morality, health and other FRs	29(1): any section of citizens with distinct language, script or culture	Autonomy survives regulation; regulation cannot erase institutional identity.

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05

ARTICLE 21

preventive detention: distinct safeguards

no-board period remains three months

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 20 restrains criminal power through protections against retrospective penal liability, double jeopardy and compelled testimonial self-incrimination, each operating within its defined scope.

06

STAGE 05EXPLOITATION, RELIGION AND MINORITY AUTONOMY

EXPLOITATION, RELIGION AND MINORITY AUTONOMYARTICLES 23-24 TRAFFICKING AND FORCED LABOUR PROHIBITED; MINIMUM-WAGE COERCIONARTICLES 25-28 INDIVIDUAL CONSCIENCE AND PROFESSION, PRACTICE AND PROPAGATIONARTICLE 26 DENOMINATION MANAGEMENT LIMITS

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CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLES 23-24 trafficking and forced labour prohibited	Article 26 denomination management limits: public order, morality, health and other FRs	29(1): any section of citizens with distinct language, script or culture	Autonomy survives regulation; regulation cannot erase institutional identity.
minimum-wage coercion can implicate 23 children below 14 barred from factories, mines and hazardous employment under 24	State may regulate secular activity and enact social reform	29(2): admission non-discrimination in covered institutions	
ARTICLES 25-28 individual conscience and profession, practice and propagation	ARTICLES 29-30	30: religious and linguistic minorities may establish and administer institutions	

CONSTITUTIONAL BASIS / ARTICLE

ARTICLES 23-24 trafficking and forced labour prohibited

minimum-wage coercion can implicate 23 children below 14 barred from factories, mines and hazardous employment under 24

ARTICLES 25-28 individual conscience and profession, practice and propagation

POWER / PROCEDURE

Article 26 denomination management limits: public order, morality, health and other FRs

State may regulate secular activity and enact social reform

ARTICLES 29-30

CHECK / LIMIT

29(1): any section of citizens with distinct language, script or culture

29(2): admission non-discrimination in covered institutions

30: religious and linguistic minorities may establish and administer institutions

FEDERAL / RIGHTS IMPACT

Autonomy survives regulation; regulation cannot erase institutional identity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 24’s text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

07

STAGE 06ARTICLE 32: WRIT REMEDIES AND THE ENFORCEMENT LADDER

ARTICLE 32WRIT REMEDIES AND THE ENFORCEMENT LADDERRIGHT VIOLATEDSUPREME COURT FOR FUNDAMENTAL RIGHTSPARTICLE 226HIGH COURT FOR FRs AND OTHER LEGAL RIGHTSWRIT CHOICEHABEAS CORPUS PRODUCE DETAINED PERSON; TEST DETENTION

RIGHT VIOLATED

ARTICLE 32 → SUPREME COURT for Fundamental Rights

ARTICLE 226 → HIGH COURT for FRs and other legal rights

WRIT CHOICE

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
RIGHT VIOLATED	WRIT CHOICE	PROHIBITION stop jurisdictional excess before completion	Article 32 is itself a Fundamental Right; legal fit still matters.
ARTICLE 32 → SUPREME COURT for Fundamental Rights	HABEAS CORPUS produce detained person; test detention	CERTIORARI quash completed order for jurisdictional or legal error	Article 226 is territorially and remedially wider, not constitutionally inferior.
ARTICLE 226 → HIGH COURT for FRs and other legal rights	MANDAMUS compel public duty	QUO WARRANTO test authority to hold public office	

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect—detention, unperformed duty, threatened excess, defective order or unlawful public office.

08

STAGE 07SAVING CLAUSES, PROPERTY AND AMENDMENT DOCTRINE

SAVING CLAUSES, PROPERTY AND AMENDMENT DOCTRINEARTICLE 31A SPECIFIED REFORM CATEGORIES PROTECTED FROM ARTICLE 14/19ARTICLE 31B + NINTH SCHEDULE LISTED-LAW PROTECTIONI.R. COELHO (2007)POST-24 APR 1973 INSERTIONS FACE BASIC-STRUCTURE REVIEW

ARTICLE 31C ORIGINAL PROTECTION FOR GENUINE ARTICLE 39(B)/(C) LAWSKESAVANANDA BHARATI (1973) LIMITS IMMUNITYMINERVA MILLS (1980) DEFEATS EXTENSION TO ALL DPSPs

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 31A specified reform categories protected from Article 14/19 attack	ARTICLE 31C original protection for genuine Article 39(b)/(c) laws against 14 and 19	Property Owners Association (2024) preserves original 31C	Article 300A: every person; deprivation only by authority of law.
ARTICLE 31B + NINTH SCHEDULE listed-law protection	Kesavananda Bharati (1973) limits immunity	not every private asset is automatically a community resource	
I.R. Coelho (2007): post-24 Apr 1973 insertions face basic-structure review	Minerva Mills (1980) defeats extension to all DPSPs	44th Amendment: Article 31 leaves Part III	

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

09

STAGE 08ARTICLE 358 AND 359: EMERGENCY EFFECTS ARE NOT THE SAME

ARTICLE 358 AND 359EMERGENCY EFFECTS ARE NOT THE SAMEARTICLE 358 ARTICLE 359 AUTOMATIC OPERATION PRESIDENTIAL ORDER REQUIREDARTICLE 19 ONLY SPECIFIED RIGHTS NAMED IN ORDER WAR/EXTERNAL-AGGRESSIONARTICLES 33-35

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CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 31A specified reform categories protected from Article 14/19 attack
- ARTICLE 31B + NINTH SCHEDULE listed-law protection
- I.R. Coelho (2007): post-24 Apr 1973 insertions face basic-structure review

POWER / PROCEDURE

- ARTICLE 31C original protection for genuine Article 39(b)/(c) laws against 14 and 19
- Kesavananda Bharati (1973) limits immunity
- Minerva Mills (1980) defeats extension to all DPSPs

CHECK / LIMIT

- Property Owners Association (2024) preserves original 31C
- not every private asset is automatically a community resource
- 44th Amendment: Article 31 leaves Part III

FEDERAL / RIGHTS IMPACT

- Article 300A: every person; deprivation only by authority of law.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

08

STAGE 08

ARTICLE 358 AND 359: EMERGENCY EFFECTS ARE NOT THE SAME

ARTICLE 358 AND 359EMERGENCY EFFECTS ARE NOT THE SAMEARTICLE 358 ARTICLE 359 AUTOMATIC OPERATION PRESIDENTIAL ORDER REQUIREDARTICLE 19 ONLY SPECIFIED RIGHTS NAMED IN ORDER WAR/EXTERNAL-AGGRESSIONARTICLES 33-35

PARLIAMENT MAY TAILOR FRs FOR FORCES AND SPECIFIED SERVICESMAY INDEMNIFY MARTIAL-LAW ACTS AND HAS EXCLUSIVE COMPETENCE OVERMARTIAL LAW

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 358 ARTICLE 359 automatic operation Presidential order required	limit suspends enforcement, not text post-44th nexus conditions apply Articles 20 and 21 cannot be included	Parliament may tailor FRs for forces and specified services	MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation.
Article 19 only specified rights named in order war/external-aggression Emergency Emergency while order operates changes State's Article 19	ARTICLES 33-35	may indemnify martial-law acts and has exclusive competence over listed matters.	No rule says all Fundamental Rights automatically disappear in Emergency.

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 358 ARTICLE 359 automatic operation Presidential order required
- Article 19 only specified rights named in order war/external-aggression Emergency Emergency while order operates changes State's Article 19

POWER / PROCEDURE

- limit suspends enforcement, not text post-44th nexus conditions apply Articles 20 and 21 cannot be included
- ARTICLES 33-35

CHECK / LIMIT

- Parliament may tailor FRs for forces and specified services
- may indemnify martial-law acts and has exclusive competence over listed matters.

FEDERAL / RIGHTS IMPACT

- MARTIAL LAW != NATIONAL EMERGENCY local exceptional coercive control differs from constitutional proclamation.
- No rule says all Fundamental Rights automatically disappear in Emergency.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Martial law does not automatically erase habeas corpus or create unlimited military power.

09

STAGE 09

EXACT 10/15-MARK ARCHITECTURE: LIBERTY, LIMITATION AND REMEDY

EXACT 10/15-MARK ARCHITECTURELIBERTY, LIMITATION AND REMEDY10 MARKS150 WORDS1. IDENTIFY CLAIMANT, STATE ACTION AND EXACT ARTICLE.2. STATE CITIZEN/PERSON REACH, VERTICAL/HORIZONTAL EFFECT AND DUTY.3. APPLY PROTECTED INTERESTLISTED LIMIT

10 MARKS / 150 WORDS1. Identify claimant, State action and exact Article.2. State citizen/person reach, vertical/horizontal effect and duty.3. Apply protected interest – listed limit – proportionality.4. Add one controlling case and Article 32 or 226 remedy.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
10 MARKS / 150 WORDS 1. Identify claimant, State action and exact Article. 2. State citizen/person reach, vertical/horizontal effect and duty. 3. Apply protected interest → listed limit → proportionality.	4. Add one controlling case and Article 32 or 226 remedy. 5. Conclude on validity with a narrow qualification. 15 MARKS / 250 WORDS 1. Frame Part III through gatekeepers, rights, limits, remedies and savings.	2. Explain the Article family with clause-level accuracy. 3. Apply Article 14 fairness and Article 19/21 proportionality where relevant. 4. Integrate rights-DPSP harmony through Minerva Mills (1980). 5. Test amendment/immunity through Kesavananda Bharati (1973) and I.R. Coelho (2007).	6. Distinguish Article 358 from 359 if Emergency is involved. 7. Conclude: governance requires legality, justification and remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENTARTICLE 17 DIRECTLY INVALIDATES CASTE DISABILITY.ARTICLE 23 DIRECTLY PROHIBITS FORCED LABOUR.VISHAKA (1997) USED ARTICLES 14, 19(1)(G) AND 21 TO FILLPRIVACY DISPUTES BETWEEN INDIVIDUALS OFTEN OPERATE THROUGH EVIDENCE, FAMILY

NARROWED ARTICLE 358 TO EXTERNAL EMERGENCYPROTECTED ARTICLES 20 AND 21 FROM ARTICLE 359REQUIRED TIGHTER RELATION/RECITAL CONTROLS; AND

OPTIONAL DOCTRINE / CASE

- Article 17 directly invalidates caste disability.
- Article 23 directly prohibits forced labour.
- Vishaka (1997) used Articles 14, 19(1)(g) and 21 to fill a statutory vacuum around workplace sexual harassment.
- Privacy disputes between individuals often operate through evidence, family, labour or data statutes rather than a simple Article 32 petition.

ADVANCED LIMIT

- narrowed Article 358 to external Emergency;
- protected Articles 20 and 21 from Article 359;
- required tighter relation/recital controls; and
- retained judicial review of the Emergency architecture.

COMPARATIVE NUANCE

- Optional: The Core above is independently paper-complete.
- This section is for deeper 15/20-mark reasoning and unfamiliar hypotheticals.
- Equality as anti-subordination, not merely consistency [ANALYSIS] Formal equality asks whether similarly situated persons receive the same rule.
- Anti-subordination asks whether law entrenches a hierarchy such as caste, sex or disability.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.